

MUTUAL NDA AGREEMENT

MUTUAL NON-DISCLOSURE AGREEMENT

THIS AGREEMENT is made on [Date] between:

Khiva Cheleigh, Business Topology Analyst (“Analyst”) and
[Client Name] (“Client”) (collectively “Parties”)

The Parties intend to explore a business relationship involving the exchange of proprietary information and agree to protect that information as follows.

1. Confidential Information

“Confidential Information” means any non-public, proprietary information disclosed by one Party (“Discloser”) to the other (“Recipient”), whether in writing, orally, or visually, that is (a) marked as confidential, or (b) reasonably understood to be confidential given its nature and the circumstances of disclosure. This includes, without limitation, business structures, processes, strategies, financial data, client lists, technical data, trade secrets, and analytical methodologies.

2. Exclusions

Confidential Information does not include information that:

- Is already publicly known through no breach by Recipient;
- Was rightfully in Recipient’s possession before disclosure;
- Is independently developed by Recipient without use of the Confidential Information;
- Is lawfully received from a third party without restriction.

3. Obligations

Recipient agrees to:

- Use Confidential Information solely for the purpose of evaluating or performing the agreed engagement;

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- Protect it with at least reasonable care (no less than the care used for its own confidential information of similar sensitivity);
- Not disclose it to any third party without Discloser's prior written consent, except to employees or contractors who need to know and are bound by equivalent confidentiality.

4. Permitted Disclosures

Recipient may disclose Confidential Information if required by law or court order, provided Recipient promptly notifies Discloser (where legally permitted) to allow Discloser to seek a protective order.

5. Return or Destruction

Upon Discloser's written request or termination of discussions, Recipient will return or securely destroy all Confidential Information and certify such destruction in writing. However, the Analyst may retain one archival copy of anonymized, non-identifiable structural insights derived from the engagement for portfolio, research, and methodology development purposes, provided no Client-identifiable information is retained.

6. Term

This Agreement's obligations survive for 3 years from the date of last disclosure.

7. No License or Warranty

No license to any intellectual property is granted by disclosure. All Confidential Information is provided "as is," without warranty.

8. Equitable Relief

Breach may cause irreparable harm. The non-breaching Party may seek injunctive relief in addition to other remedies.

9. Governing Law

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This Agreement is governed by the laws of the State of Texas, without regard to conflict-of-law rules. The Parties consent to exclusive jurisdiction and venue in the courts of Castro County, Texas.

10. Entire Agreement

This document contains the entire understanding on confidentiality. Amendments must be in writing and signed by both Parties.

SIGNATURES

Khiva Cheleigh

Signature: _____

Date: _____

[Client Name]

Signature: _____

Date: _____